

CAD FORUM

ARGUMENTATION AND THE INTERNATIONAL PROBLEM OF GENOCIDE

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In the summers of 2006 and 2007 I (Ben) had the unique opportunity and responsibility of working with Holocaust survivors at the United States Holocaust Memorial Museum. Our common task was to sharpen the arguments survivors could make against the rhetorical visions that led to the tragedy of the Holocaust and to bolster public resistance to such contemporary crimes apparent incidents such as Rwanda, the Congo, and Darfur. Those workshops left with me with the indelible impression that argumentation scholars can do more to lift the stain of genocide from the fabric of human existence. This CAD Forum is dedicated to that belief and is a continuation of a theme that emerged in a personal way for me from the work on genocide. It is a theme expressed by noted Holocaust survivor Elie Wiesel: What hurts the victim most is not the cruelty of the oppressor, but the silence of the bystander (Kristof 2006).

If this special edition only draws attention to the concerns of international humanity and the manner in which silence provides public space for injustice, it will have value to mitigate the prolonged and deep suffering of genocide. Among these ideas are: 1) a notion of "discursive complexity" allowing us to study

communication as a normative alternative to violence, 2) a heightened rhetorical sense of the authors of genocide—the genocidaire, 3) a critique of sovereignty vis-à-vis the interests of human individuals. In reviewing these three concepts, I hope to establish useful starting points for argumentation and communication scholars to help turn the bloody page of the twentieth century from one of death as a text toward our new century seeing life as a text.

The Problem of Genocide

The definition of genocide has largely centered on the UN document defining the process as a deliberate extermination of an ethnic group. Newton and Scharf provide the classic definition when reviewing the trial of Saddam Hussein:

Genocide: The intentional destruction of a national, ethnic, racial, or religious group, in whole or in part. The definition of genocide in the IHT statute is taken essentially word for word from the 1948 Convention for the Prevention and Punishment of the Crime of Genocide. It has been described by judges as the crime of crimes and is arguably, the most severe of the categories of crimes within the jurisdiction of the tribunal. Genocide is in many ways an extreme form of the crime against humanity of persecution, to which it is closely related. (254).

Though the definition is its own important area of argument and debate, it is not the focus here. The daunting reality, however one defines genocides, is that upwards of 170 million people have been exterminated in genocidal slaughters since the beginning of the 20th century. A cursory review of major genocides is worthwhile:

Armenian genocide	1.5 million
Holocaust	10 million
Stalinist purge of Ukraine	10 million
Mao's purges of China	20 million
Cambodia–Pol Pot	2 million
Kurds of Iraq–Hussein	300,000
Rwanda–Hutus	1 million

Bosnia	200,000
Sudan	2 million
Congo	2 million

(Bassiouni 1998, Kelly 2002)

Genocide has been four times as deadly as war. The vulnerability of largely unarmed civilians against military armed combatants makes the moral heartbreak of this violence even more incomprehensible. The ongoing genocides in places such as Darfur and Congo raise questions as to whether argumentation scholars as members of any intellectual movement, can make a difference (Tisdall 2009, Sudan: Progress 2008). Believing that silence is a primary part of the problem, this essay argues for making a difference.

The Discursive Limits of Genocide

The inevitability of genocide is arguably a function of an international legal system bounded by a pre-eminence of sovereignty for states over and against the sovereignty of human individuals. The current privilege of states rights, like the American era that struggled with civil rights of the 1960s, obviates our discourse of community regarding the present victims of genocide. Ultimately, the young white northern outsiders of Michael Schwerner and Goodman had to join the indigenous James Chaney in the human struggle against regimes of violence bolstered by states rights in order to disrupt the institutional violence of the South. Until the nation began to empathize with the struggles of individual civil rights activists in the South, it was not possible to overcome the blockade of states rights rhetoric that protected Jim Crow practices.

Ethnic tensions like those in the civil rights era of the United States permeate the entire globe. Without dedicated activism and critique, the progress of human dignity will be slowed and the stubborn hold of intimidating violence will remain. With that in mind, three criteria can be recognized from a communication and argumentation standpoint to improve the human condition globally: 1) a moral notion of discursive

complexity, 2) a heightened rhetorical sense of the perpetrators of genocide, and 3) a broad critique of state sovereignty vis-à-vis the human individual.

Discursive Complexity

Discursive complexity can be defined and recognized as the capacity of an individual or group to allow and encourage dissent. Furthermore, discursive complexity is a principle recognizing the value of various expressed viewpoints. Contrast this with discursive simplicity whereby an individual or group demands or insists upon a limited capacity of expression. Argumentation inherently valorizes discursive complexity by emphasizing the study and teaching of contrasting and competing ideas. Discursive complexity represents a moral point of view since we can prefer individuals and groups that make greater provision for free expression. Such environments encourage critical thinking and diminish the expectation and need for violence.

Discursive complexity can be a tool for moral judgment. In reviewing ethnic disputes globally, it is possible to assess and review how competing powers practice free expression. Powers that allow free expression ought to be preferred in disputes and powers that limit free expression should be pressured to allow greater capacities to question authorities about the use of power.

A recent incident involving Andrea Mitchell reporting in Sudan is illustrative. After a public press conference regarding genocide in the nation, Mitchell sought to follow government entities into a meeting among various public figures. Sudanese government officials grabbed her and forcibly removed her from the meeting. Mitchell protested her treatment and demanded to be present (Mitchell 2005). The Sudanese officials responded: "This is not America where you have press freedom. You will not be in this meeting." The silencing and repression of inquiry by the Sudanese government is an admission that their larger policies surrounding important questions such as Darfur are morally illegitimate. Bashir's government of Sudan cannot allow inquiry about its policies. This is an indication of discursive simplicity.

Drawing from this example, interested parties reviewing genocide claims should take into account the discursive complexity of competing agents. For instance, in a dispute between Russia and Georgia, which side seems more open to public inquiry about the dispute? It does seem that in South Ossetia that Russia had established a propaganda state wherein the operation of a free press was impossible (Kucera 2008). This distinction should modify our judgment of potentially equal states fighting one another.

The potential use of discursive complexity was apparent in the trial of Saddam Hussein in 2006. In the trial, defense attorneys argued rather artfully that Hussein's violence was justifiable, coming in response to known assassination threats coming from a small town in Iraq. According to the defense, the violence was no different than that of American soldiers in Fallujah acting in their own defense. According to Newton and Scharf, the prosecution won their case but failed to highlight the absence of trials for the accused when Saddam summarily killed 600 residents of the town, including children, in a show of force that gave no recourse to residents in the way of trial or appeal (2008). The absence of discursive complexity differentiates the behavior of the Iraqi sovereign and offers a measure of moral clarity.

The Genocidaire

Only the French seem to have a term for the perpetrators of genocide: the *Genocidaire*. This linguistic limitation is significant since from a Burkean standpoint, it limits our capacity to understand the agent and the act. The habit of viewing genocides as a *scenic feature* is detrimental to the victims and our capacity to seek justice. Media coverage tends to emphasize the place of genocide rather than the agents and agency. Tragedies in Sudan and Rwanda leave us more familiar with the place than the crime (Kanuma 2009; Sudan: Darfur suffers 2009; UN warned 2009). This scene/agency ratio creates the public impression that genocide is endemic to certain parts of the world. Africa will always be this way. We cannot change Somalia, Rwanda, and Sudan. This is the way of Africa. The reduction of human actions to geographical motion is a selection and therefore deflects reality (Burke 1968).

Individuals have chosen to give orders to kill. Individuals have taken arms in response to arguments for the purpose of carrying out genocides. It is possible to communicate with reference to agents and agency and re-establish the agent/scene ratio (Burke 1969).

This distinction is vital to the operation of international law. Establishing motive and action remains a critical distinction in the prosecution of genocide as a crime. So long as perpetrators can rely upon communication patterns emphasizing the scene, they will know that identification will be limited and the risk of prosecution low.

The difficult struggle over naming the Sudanese violence came to an abrupt end in 2003 when U.S. Secretary of State said in public to the U.S. Congress that the violence in Sudan constituted genocide." In an instant, the scene/act ratio became act/scene. The world saw an argument that the government of Sudan was committing genocide. This public argument stood in contrast to the State department's careful avoidance of the term during the 1994 Rwandan genocide (Power 2002; Tisdall 2009).

A consistent pattern of communicating about violence as instigated and caused rather than serially inevitable will convert motion back into action. The genocides in Africa do not arise out of the soil or elements of the continent. The genocides there and around the world are the consequences of public arguments made to individuals who then carry out the crimes-whether in Cambodia, Kosovo, Rwanda, Iraq, or Turkey.

Communication and argumentation scholars can identify proponents of genocide. Individuals can be named and the rhetoric they employ can be critiqued. This should displace the pedestrian 'place is violent' pattern which encourages students of the global public sphere to believe nothing can change.

The State versus Individual

A final remedy from the communication sphere regarding genocide is building of a broad critique of state's rights. Building on the analogy of civil rights, critics can ask questions about state sovereignty and the privilege of killing domestic civilians accorded

to state leaders. The peculiar intensity of this privilege in places such as North Korea and Zimbabwe should draw critical attention. International law presently provides privilege to states over individuals (Elden 2006; UN Alleges 2008; de Waal 2008). Interference in state's rights internationally is construed as an act of war and leaves individuals without refuge from brutal violations of their humanity. The boundaries drawn by colonial powers become the lines of a discursive prison wherein an individual's humanity becomes profoundly contingent upon the wishes of the state.

A difficult issue in this discussion is an understanding of the differences between war and genocide. When military personnel from one sovereign engage in combat with military personnel from another sovereign, this is war. When military personnel or state sponsored militias attack and kill their own domestic populations, this is genocide. There is a difference and that difference is profoundly moral. The civic power position of civilians is inherently limited compared to military personnel. Discursive complexity in civilian/military relations is thus low. The capacity to resist and disagree with militarized states is marginal. Consequently, our moral outrage regarding genocide must exceed our moral outrage surrounding war. At present, it is difficult to discern that global moral sense—even among academic and international experts.

The dramatic reduction of state to state violence suggests that the world does perceive the state as more valuable than the individual. A broad critique of this preference should be supported by communication scholars due to intrinsic limits genocide imposes on public expression for the attacked population.

Conclusion

From the pervasiveness of global violence such as genocide, it is easy to draw a sense of inevitability. Human beings will always kill one another. This truism calls us to accept it as mere motion. Argumentation and communication scholars are better equipped than most experts to understand that humans rarely kill in random ways. They are motivated by words. Their actions are shaped by public arguments that establish the reasons for the Kill. The simple

and persistent creation of human scapegoats—while common—is not inevitable. Human beings can reconsider and advocates can suggest alternatives. We can resist and overcome that thing which hurts the victim of genocide most: silence. Each of the essays in this forum focuses on practical means for strengthening the public sphere surrounding human injustice.

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